

1 No. I -- I think there were times of crisis. And
2 you know -- and -- and that's when he would
3 communicate, when he believed there was crisis. But
4 you know, I was also communicating with Tara, and
5 she was telling me some pretty horrific things about
6 Russell. So I -- I -- I -- I -- quite frankly, I --
7 I took both sides with a grain of salt. I wasn't
8 sure what was accurate and what was not accurate.
9 But I certainly didn't take Stephen Russell's
10 correspondences as -- as factual or accurate either.

11 **Q. And did you ever tell that to Stephen**
12 **Russell?**

13 A. No.

14 **Q. So I am going to point you to this text**
15 **message where it says you state, "Excellent. Thank**
16 **you Steve, we appreciate your assistance and**
17 **understanding. And thank you for the timely**
18 **updates."**

19 A. Yes.

20 **Q. Would you say you were not being genuine**
21 **when you thanked Steve Russell for the timely**
22 **updates then?**

23 A. I would say --

24 **MR. MOORE:** Objection --

25 **BY MS. LLAGUNO:**

1 A. -- I -- I would be less than 100 percent
2 genuine, yes.

3 **Q. And what was your reason for responding to**
4 **Steve Russell in that way?**

5 A. To kind of defray the situation and -- and
6 make sure that Tara and the baby were safe and keep
7 the lines of communication open for that purpose.

8 **Q. And you stated that you also took Tara**
9 **Walsh's statements during this time with a grain of**
10 **salt. What was your reason for doing so?**

11 A. Well, Tara had, you know, against our
12 wishes, gone out to San Francisco even after we had
13 witnessed, you know, the situation with Stephen
14 Russell. So I was -- you know, we -- we -- we were
15 disappointed and -- and angry with her for -- for
16 going out there in the first place. So I wasn't
17 going to allow her to play the victim by telling me
18 that, you know, this or that was happening. So I --
19 I -- I -- I -- I didn't necessarily pay a lot of
20 attention to -- to that stuff either. I -- I
21 started to pay more attention when things seemed to
22 get worse.

23 **Q. And do you believe Tara Walsh plays the**
24 **victim regularly?**

25 A. No, no. But I think people, like, on

1 Q. Do you know if Tara was the one telling
2 you that she canceled the flight and is returning?

3 A. Again, I don't recall, but -- but that
4 might have been the case. I'm not saying it wasn't
5 the case.

6 Q. During this time in early June, were you
7 speaking to Tara about leaving?

8 A. I -- I really don't recall. I don't
9 recall.

10 Q. And -- sorry. This same text message, you
11 state that -- you texted Steve Russell, "Hopefully
12 some solutions exist." What did you mean by that?

13 A. I -- I don't know. I don't know. Again,
14 in -- in many of these interactions and -- and
15 correspondences, I would -- I would -- I would humor
16 him because I -- I -- you know, I viewed him as
17 unstable and dangerous.

18 Q. So you -- with your responses, you
19 wouldn't be completely genuine so as to humor him;
20 is that --

21 MR. MOORE: Object -- objection; misstates
22 the testimony; argumentative.

23 BY MS. LLAGUNO:

24 Q. You can respond, Mr. Walsh.

25 A. No response.

1 Q. You do not want to respond to that
2 question?

3 A. That is correct.

4 Q. Can you give me the basis for your --

5 MR. MOORE: Objection. It's --

6 BY MS. LLAGUNO:

7 A. No.

8 MR. MOORE: -- argumentative. And it --
9 you know, and it misstates his testimony. So that's
10 the basis for it.

11 MS. LLAGUNO: Mr. Moore, please do not
12 coach the witness. I'm asking --

13 MR. MOORE: I'm not coaching. I'm
14 instructing him not to answer. He's already decided
15 not to answer. So move on.

16 MS. LLAGUNO: So you are instructing him
17 not to answer that question? I just wanted to
18 clarify.

19 MR. MOORE: He -- he -- I -- well, I will
20 clarify that he himself decided not to answer the
21 question, and -- and for -- there was a good basis
22 for it. When you tried to put words in his mouth
23 that misstate what he testified to, that's a
24 problem. So he's a very competent witness here, and
25 he can make these decisions himself. But I tend to